

MASTER SERVICE AGREEMENT

This Master Service Agreement (“Agreement”) is entered into between Smart Support LLC, a State of Washington limited liability company, doing business as Octomaids (“Company”), and (“Contractor”), effective as of (“Effective Date”).

1. Services

The Contractor agrees to perform the services outlined in Schedule A (“Services”) on a non-exclusive, independent contractor basis for the Company. The Company engages the Contractor to deliver the Services in a professional manner, adhering to the specifications and expectations set forth in Schedule A.

2. Compensation and Expenses

2.1 Fees

The Contractor’s sole compensation shall be 60% of the total amount collected for each customer contract completed through the Company. Payments will be made biweekly, upon the Company’s receipt of a detailed invoice from the Contractor outlining the Services rendered.

2.2 Expenses

The Contractor is solely responsible for all costs incurred in performing the Services, including but not limited to supplies, tools, and transportation. The Company will cover payment processing and credit card transaction fees associated with customer payments.

2.3 Payment Terms

- Invoices must be submitted promptly and include documentation as reasonably requested by the Company. Undisputed invoices will be paid within the biweekly payment period.
- The Company may withhold or delay payment for any customer job if the customer withholds payment due to service quality issues, property damage, or incomplete work. Funds for that job will be released only upon resolution to the Company’s satisfaction. If the Contractor is deemed responsible, the Company may reduce or forfeit the Contractor’s payment share for that job.

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- If a customer has not paid the Company, the Company may delay payment to the Contractor for up to 60 days from the date of service or until customer payment is received, whichever occurs first. This delay shall not constitute a breach of contract or grounds for penalty.

3. Independent Contractor Relationship

The Contractor is an independent contractor, not an employee, partner, agent, or representative of the Company. The Contractor shall not represent otherwise and is not entitled to employee benefits.

- The Contractor must avoid discussing or disclosing their employment status during client interactions.
- All customer communications regarding scheduling changes, service issues, or special requests must be directed to the Octomaids office. The Contractor may not negotiate directly with clients under any circumstances.

4. Representations and Warranties

The Contractor represents and warrants that:

- They will comply with all applicable laws and regulations.
- The Services will be performed professionally and meet industry standards.
- All work will align with the Company's specifications and expectations.
- The Contractor holds all necessary licenses and permits.
- The Services and deliverables will not infringe on any third-party intellectual property rights.

5. Intellectual Property Rights

- All materials, work product, and deliverables produced under this Agreement ("Work Product") are the sole property of Smart Support LLC, doing business as Octomaids. The Contractor assigns all rights, title, and interest in the Work Product to the Company.
- If pre-existing materials are used, the Contractor grants the Company a nonexclusive, royalty-free, irrevocable license to use them. No pre-existing materials may be incorporated without the Company's prior written consent.

6. Confidentiality and Non-Interference

6.1 Confidential Information

During the engagement, the Contractor may access confidential and proprietary information, including but not limited to:

- Client names and contact information

- Pricing structures
- Internal business processes
- Marketing strategies
- Supplier and vendor relationships
- Operational systems and tools

The Contractor agrees not to disclose, use, reproduce, or distribute such information for personal gain or to benefit a competitor, during or after the term of this Agreement.

6.2 Non-Solicitation

During the term of this Agreement and for 24 months following termination, the Contractor shall not:

- Solicit or hire the Company's employees.
- Interfere with existing client relationships.
- Induce customers or vendors to cease doing business with Smart Support LLC, doing business as Octomaids.
- Share personal or business contact information (e.g., phone, email, business cards) with the Company's clients.

For this section, "Client" means any individual or business entity who has received services from Smart Support LLC, doing business as Octomaids, during the Contractor's engagement.

6.3 Customer Poaching Prohibition

The Contractor shall not solicit, accept, or provide cleaning services — directly or indirectly — to any Company customer for 24 months after their last assigned service date. This includes using another business name, offering referrals, or circumventing the Company's systems.

6.4 Liquidated Damages

Violation of Sections 6.2 or 6.3 constitutes a material breach. The Contractor agrees to pay liquidated damages of \$3,500 per client per violation, or actual damages incurred by Smart Support LLC, doing business as Octomaids, whichever is greater, plus all reasonable legal fees and costs incurred in enforcement.

6.5 Non-Disparagement

The Contractor shall not make disparaging remarks about Smart Support LLC, doing business as Octomaids, or its affiliates during or after the term of this Agreement.

7. Term and Termination

7.1 Term

This Agreement begins on the Effective Date and remains in force for one (1) year, automatically renewing for additional one-year periods unless either Party provides 30 days' written notice of non-renewal.

7.2 Termination by Company

The Company may terminate this Agreement, with or without cause, by providing 15 days' written notice to the Contractor.

7.3 Termination by Contractor

The Contractor may terminate this Agreement with 30 days' written notice to the Company. In the case of a material breach by the Company, the Contractor may terminate with 14 days' written notice if the breach remains uncured after written notification.

7.4 Grounds for Immediate Termination

The Company may terminate this Agreement immediately, at its sole discretion, if the Contractor:

- Solicits clients in violation of Section 6.2 or 6.3.
- Shares or misuses confidential or proprietary information.
- Engages in conduct that damages the Company's reputation or operations.
- Fails to comply with professional standards outlined herein.

7.5 Post-Termination Customer Compensation Obligation

Upon termination by the Contractor, if the Contractor wishes to discontinue working with customers introduced, assigned, or facilitated by the Company:

- The Contractor may sell or transfer those customers to another contractor currently under contract with Smart Support LLC, doing business as Octomaids, subject to:
 - Prior written approval from the Company, and
 - Agreement by the receiving contractor to assume service responsibilities under the same terms and quality standards.
- Alternatively, the Contractor may sell or transfer those customers to a third party, provided the Company remains entitled to 40% of the gross revenue collected from each such customer for 24 months following the date of contract termination.
- The Company retains the right of first refusal and may purchase the customer relationships at a mutually agreed-upon fair market value.

- If the Contractor retains and services these customers independently, the Company is entitled to 40% of the gross revenue collected from each such customer for 24 months following termination.

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Failure to comply constitutes a material breach, entitling Smart Support LLC, doing business as Octomaids, to injunctive relief, monetary damages, and reimbursement of legal and enforcement costs.

8. Insurance

The Contractor shall maintain adequate insurance coverage throughout the term, listing Smart Support LLC, doing business as Octomaids, as an additional insured. Proof of coverage must be provided upon request.

9. Customer Ownership and Remedies

- All customers serviced under this Agreement are the exclusive property of Smart Support LLC, doing business as Octomaids. The Contractor may not claim ownership, sell, transfer, or continue servicing these clients independently without the Company's consent.
- Any unauthorized attempt to solicit, retain, or transfer the Company's customers outside approved channels is a material breach. Smart Support LLC, doing business as Octomaids, is entitled to injunctive relief, monetary damages, and reimbursement of legal and enforcement costs.
- The Company retains a vested ownership interest in all customer relationships for 24 months post-termination. The Contractor may sell or transfer these relationships to another currently contracted Company service provider with prior written approval, or to a third party, subject to the Company's entitlement to 40% of gross revenue for 24 months, or the Company may purchase the accounts at a mutually agreed-upon fair market value.

10. Indemnification

The Contractor agrees to indemnify and hold harmless the Company from any claims, damages, or losses arising from:

- Willful or negligent acts by the Contractor,
- Breach of this Agreement,
- Intellectual property violations.

The Company may deduct indemnification-related costs from payments due to the Contractor.

11. Cleaning Standards and Performance

The Company may reassign customers or limit opportunities if the Contractor:

- Misses appointments or arrives late,

- Fails to meet quality standards,

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- Causes property damage.

The Contractor may be required to reimburse replacement teams or cover losses. High-performing contractors may receive additional job opportunities.

12. Damage Responsibility and Compensation

The Contractor is fully responsible for damage caused by themselves, their staff, or sub-contractors, including:

- Repair or replacement costs,
- Reimbursement to the Company for refunds, service credits, or other damages.

The Company retains its standard 40% compensation from the original service. Ongoing issues may result in termination.

13. Dispute Resolution

- The Parties agree to attempt good faith mediation to resolve disputes arising under this Agreement. If mediation fails, the matter shall be settled by binding arbitration under the rules of the American Arbitration Association.
- Arbitration shall occur in Washington or Oregon, depending on the relevant client location, unless otherwise agreed in writing.
- Each Party bears its own legal fees and costs, unless otherwise awarded by the arbitrator.

14. Miscellaneous

14.1 Governing Law

This Agreement is governed by the laws of the State of Washington. Disputes shall be resolved in the courts of Clark County, WA, with the prevailing party entitled to attorney's fees and court costs.

14.2 Entire Agreement

This document constitutes the full and complete Agreement, superseding all prior discussions or agreements.

14.3 Assignment

The Contractor may not assign this Agreement without the Company's prior written consent. The Company may assign its rights and obligations freely.

14.4 Modifications

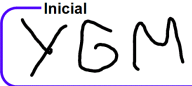
All changes must be in writing and signed by both Parties.

14.5 Severability

If any provision is deemed invalid, the remainder of this Agreement shall remain in full force.

Contractor Firmado por:
Signature: 
Printed Name: Yanelys Garcia
Title (if applicable): owner
Effective Date: 6/10/2025

Company Signed by:
Signature: 
Printed Name: Norma Duquette (managing member)
Title (if applicable): owner
Effective Date: 6/10/2025

Inicial

Initials: _____

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Schedule A - Description of Services

Services Include:

- Residential house cleaning
- Deep cleaning
- Move-in/move-out cleaning
- Airbnb and short-term rental cleaning
- Light commercial and office cleaning
- Specialty services as approved

Expectations:

- Use eco-friendly products (when requested)
- Follow the Company's service checklists
- Maintain professionalism
- Promptly report and communicate issues